

Website Design & Development Agreement

This Website Design and Development Agreement (this “**Agreement**”) is entered into as of **[Effective Date]** (the “Effective Date”) by and between **Francis Web Agency**, a web design and development business located at 1707 Largo Circle, Valdosta, GA 31602 (“**Developer**,” “we,” “us,” or “FWA”), and **[Client Legal / Business Name]**, located at **[Client Address]** (“**Client**,” “you”). Developer and Client are each a “Party” and together the “Parties.”

1. Scope of Services

- 1.1 Developer agrees to design and develop a website (the “**Website**”) for Client as described in the Statement of Work attached as **Exhibit A**, which is incorporated into this Agreement by reference.
- 1.2 The scope includes only the pages, features, and deliverables listed in Exhibit A. Any work not expressly described there is “**Out-of-Scope Work**” and is governed by Section 6.
- 1.3 **Deliverables.** Upon completion and receipt of full payment, Developer will deliver the items specified in Exhibit A (e.g., final files, deployment to Client’s hosting, and/or access credentials).

2. Project Timeline

- 2.1 Estimated start date: **[Start Date]**. Target completion date: **[Target Launch Date]**. These are good-faith estimates that depend on Client’s timely cooperation and content delivery.
- 2.2 **Client Delays.** Deadlines assume Client provides content, feedback, and approvals within the turnaround times in Section 3. Delays caused by Client extend all affected deadlines accordingly and may require rescheduling around Developer’s other commitments.
- 2.3 **Inactivity.** If Client fails to respond or provide requested materials for more than **[30]** consecutive days, Developer may treat the project as abandoned and terminated under Section 12, with the deposit forfeited and completed work invoiced.

3. Client Responsibilities

Client agrees to:

- (a) designate a single primary point of contact authorized to give approvals;
- (b) provide all text, images, logos, and other content in usable digital formats by **[Content Deadline]**;
- (c) provide timely access to any required accounts (hosting, domain registrar, analytics, third-party services);
- (d) review and respond to requests for feedback or approval within **[5]** business days; and
- (e) ensure Client holds the legal rights to all materials it provides to Developer.

4. Fees and Payment

- 4.1 **Project Fee.** The total fee for the Website is **[\$ Total Fee]** (the “Project Fee”).
- 4.2 **Deposit.** A non-refundable deposit of fifty percent (50%) is due upon signing and before work begins. Work is scheduled only after the deposit is received.
- 4.3 **Final Payment.** The remaining fifty percent (50%) is due upon completion and **before** the Website is launched, deployed, or final files are transferred to Client.

4.4 **Payment Method.** Payments are made via the Stripe invoice link provided by Developer, unless otherwise agreed in writing.

4.5 **Late Payments.** Amounts unpaid more than [7] days after the due date accrue interest at 1.5% per month (or the maximum allowed by Georgia law, if less). Developer may suspend work on any overdue account.

4.6 **Non-Refundable Deposit.** The deposit compensates Developer for reserving time and commencing work and is non-refundable except where required by law.

Payment	Amount	Due
Deposit (50%)	[\$ Deposit]	On signing, before work begins
Final (50%)	[\$ Balance]	On completion, before launch/handoff

5. Revisions

5.1 **Included Revisions.** The Project Fee includes [two (2)] rounds of revisions at the design/review stage. A “round” is a single, consolidated set of change requests submitted together.

5.2 **Additional Revisions.** Revisions beyond those included, or requested after Client has approved a deliverable, are billed at Developer’s hourly rate of [\$ ____ /hour], with an estimate provided before work proceeds.

6. Additional Work and Change Orders

6.1 Out-of-Scope Work must be agreed in a written change order (email is sufficient) describing the work and cost **before** it begins.

6.2 Out-of-Scope Work is billed at [\$ ____ /hour] or a flat fee stated in the change order and does not alter the payment schedule for the original in-scope work.

7. Third-Party Services and Costs

7.1 Costs for hosting, domain registration, premium plugins, themes, stock media, fonts, and similar third-party products are Client’s responsibility and are not included in the Project Fee unless stated in Exhibit A.

7.2 Developer may advance such costs and invoice them at cost, or Client may purchase them directly.

7.3 Third-party products are governed by their own licenses; Developer is not responsible for their performance, availability, pricing, or changes.

8. Intellectual Property and Ownership

8.1 **Ownership on Payment.** Upon receipt of the full Project Fee, Developer assigns to Client all right, title, and interest in the final delivered Website design and the custom content created specifically for Client under this Agreement.

8.2 **Before Payment.** Until paid in full, all work product, designs, and code remain Developer’s sole property, and Client acquires no right to use, deploy, or reproduce any deliverable.

8.3 **Developer Tools.** Developer retains ownership of its pre-existing materials, know-how, frameworks, libraries, and reusable code components. To the extent any are incorporated in the deliverables, Developer grants Client a non-exclusive, perpetual license to use them as part of the Website.

8.4 **Third-Party Assets.** Assets licensed from third parties remain subject to their original licenses; Client's rights are limited to those licenses.

8.5 **Portfolio Rights.** Developer may display the Website in its portfolio, case studies, and marketing, and may include a discreet "Website by Francis Web Agency" credit with a link in the footer, unless the Parties agree otherwise in writing.

9. Client Warranties and Indemnification

9.1 Client represents and warrants that all content and materials it provides do not infringe any third party's intellectual property, privacy, or other rights, and comply with applicable law.

9.2 Client will indemnify and hold Developer harmless from any claims, damages, or costs (including reasonable attorneys' fees) arising from materials Client provides or from Client's use or operation of the Website after delivery.

10. Warranties, Disclaimers & Post-Launch Support

10.1 **Workmanship.** Developer warrants that services will be performed in a professional and workmanlike manner.

10.2 **Bug-Fix Period.** For [30] days after launch, Developer will correct defects in the delivered work at no charge, provided the issue is not caused by Client changes, third-party updates, or misuse.

10.3 **No Other Warranties.** Except as stated above, the Website is provided "as is," and Developer disclaims all other warranties, express or implied, including merchantability and fitness for a particular purpose.

10.4 **No Guarantee of Results.** Developer does not guarantee specific business outcomes, search-engine rankings, traffic, or revenue.

10.5 **Ongoing Care.** Maintenance, updates, security, and support beyond the bug-fix period are not included and are available under Developer's separate care plans (Essential \$25/mo, Plus \$50/mo, Pro \$100/mo) or another written agreement.

11. Limitation of Liability

11.1 To the maximum extent permitted by law, Developer's total liability under this Agreement will not exceed the total Project Fee actually paid by Client.

11.2 Neither Party is liable for indirect, incidental, special, consequential, or punitive damages, or for lost profits or data, even if advised of the possibility.

12. Termination

12.1 **By Client.** Client may terminate at any time with written notice. Client remains responsible for payment for all work performed through termination; the deposit is non-refundable, and any additional amount owed for completed work is due within [7] days.

12.2 **By Developer.** Developer may terminate for non-payment, Client's material breach, or abandonment under Section 2.3.

12.3 **Effect.** On termination, Client is entitled to the work completed and paid for. Developer will deliver paid-for work product; unpaid work product remains Developer's property.

13. Confidentiality

Each Party will keep confidential the other's non-public information and use it only to perform this Agreement. This does not apply to information that is public, independently developed, lawfully obtained elsewhere, or required to be disclosed by law.

14. Independent Contractor

Developer is an independent contractor, not an employee, partner, or agent of Client. Developer controls the method and means of performing the services and is responsible for its own taxes and expenses.

15. Force Majeure

Neither Party is liable for delays or failures caused by events beyond its reasonable control, including natural disasters, outages, illness, or acts of government.

16. Governing Law & Dispute Resolution

16.1 This Agreement is governed by the laws of the State of Georgia, without regard to its conflict-of-law rules.

16.2 The Parties will first attempt to resolve any dispute in good faith through direct discussion. If unresolved, disputes will be brought in Lowndes County, Georgia, and the Parties consent to the jurisdiction and venue of the state and federal courts located there.

16.3 **Attorneys' Fees.** In any action to enforce this Agreement, the prevailing Party is entitled to recover reasonable attorneys' fees and costs.

17. General Provisions

17.1 **Entire Agreement.** This Agreement and Exhibit A are the entire agreement between the Parties and supersede all prior discussions.

17.2 **Amendments.** Changes must be in writing and signed, or confirmed by email, by both Parties.

17.3 **Severability.** If any provision is unenforceable, the remainder stays in effect.

17.4 **Assignment.** Client may not assign this Agreement without Developer's written consent. Developer may subcontract portions of the work but remains responsible for it.

17.5 **Waiver.** Failure to enforce any provision is not a waiver of it.

17.6 **Notices.** Notices must be sent to the email or address listed in this Agreement.

17.7 **Electronic Signatures.** Electronic signatures and email approvals are binding, and this Agreement may be signed in counterparts.

Signatures

By signing below, the Parties agree to the terms of this Agreement as of the Effective Date.

FRANCIS WEB AGENCY

Signature

Kasan Francis

Founder

Date: _____

CLIENT

Signature

[Client Name]

[Title]

Date: _____

Exhibit A

Statement of Work

Complete this Exhibit for each project. It forms part of the Agreement and controls the specific scope, deliverables, and fees.

Client / Business Name	
Project Name	
Project Goals / Description What is the site for? Primary objective.	
Pages Included e.g., Home, About, Services, Contact	
Key Features e.g., contact form, gallery, booking, blog, maps	
Design Deliverables e.g., custom design, mobile-responsive, brand colors	
Content Provided By Client / Developer / mix	
Revision Rounds Included Default: 2	
Third-Party Costs Hosting, domain, plugins, stock media (who pays)	
Project Fee Total \$ _____ Deposit 50% \$ _____ Final 50% \$ _____	
Hourly Rate (extra work) \$ _____ / hour	
Start Date / Target Launch	

Special Terms / Notes	
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Accepted and incorporated into the Agreement:

Developer: _____
Date: _____

Client: _____ Date: _____